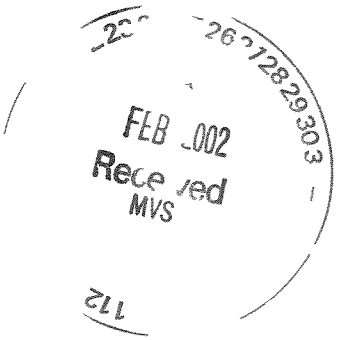
LABOR RELATIONS

UNITED STATES
POSTAL SERVICE



February 19, 2002

Mr. Robert C. Pritchard
Director
Motor Vehicle Service Division
American Postal Workers Union
AFL-CIO
1300 L Street NW
Washington, DC 20005-4127

Dear Bob:

This is in reply to your September 20 and October 30, 2001 correspondence and the Postal Service's subsequent discussions concerning the issuance of a one-year physical card for commercial motor vehicle drivers.

As discussed, the Postal Service has mirrored the Department of Transportation's (DOT), Federal Motor Vehicle Safety Administration regulations at 49 C.F.R. § 391.41, entitled Physical Qualifications for Drivers." Based on your concerns and our subsequent discussions, the following review process will be used to allow for resolution of medical evaluation conflicts:

> An employee may appeal the results of the physical to a higher level ranking Postal Service Physician. For example, if the physical is performed by a community based contract physician and the employee disagrees with the risk assessment, the employee may then ask the Associate Area Medical Director (AAMD) to review the case. If the AAMD concurs with the contract physician and the operator still wishes to pursue the objection, an independent physician, chosen jointly by the employee and the AAMD, is asked to review the case, examine the employee and render an assessment. This assessment is accepted as final.

Should there be any questions regarding the foregoing, please Rodney Lambson at (202) 268-3827.

Sincerely,

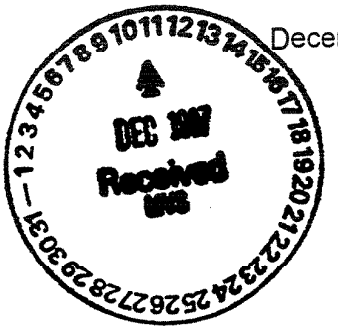
Peter A. Sgro
Manager
Contract Administration

475 L'ENFANT PLAZA SW
WASHINGTON DC 20260-4100
WWW.USPS.COM

LABOR RELATIONS

UNITED STATES POSTAL SERVICE

December 10, 1997



Mr. Robert C. Pritchard
Director, Motor Vehicle Services Division
American Postal Workers Union,
AFL-CIO
1300 L Street, NW
Washington, DC 200054107

Dear Mr. Pritchard:

This responds to your inquiry to Thomas J. Valenti, of my staff, concerning procedures for resolving conflicts of medical evaluations for a Commercial Drivers License (CDL).

The procedure for the resolution of medical conflicts are as follows: A driver who is not certified for renewal of their license due to a medical condition may appeal the results of the physical to the next higher ranking Postal Service physician. For example, if the physical is performed by a contracted physician, and the driver disagrees with the risk assessment, that driver may then request the Associate Area Medical Director (AAMD) to review the case. If the AAMD concurs with the contract physician and the driver still wishes to pursue the objection, an independent physician, chosen jointly by the driver and the AAMD, is asked to review the case, examine the driver, and render an assessment. This assessment is accepted as final.

Peter Sgro's earlier letter to you regarding this issue stated that the Postal Service complies with laws applicable to us. Sec. 391.47 of the Federal Motor Carrier Safety Regulations (FMCSR), which was cited and attached to your September correspondence, is not applicable to the Postal Service to the extent that conflicts are not appealed to the Department of Transportation's (DOT) Office of Motor Carrier Research and Standards (OMCR&S). The Department of Transportation does not review examination conflicts arising from employees of the Postal Service.

Additionally, the July 31, 1996, letter addressed to you from Sam W. P. Rea, Jr., Acting Director of the Office of Motor Carrier Research and Standards, specifically stated that "there are several limited exceptions to the applicability of the FMCSRs [see 49 CFR 390.3(f)], including transportation performed by the Federal government, unless otherwise specifically provided in the FMCSRs."

If you have any questions regarding the foregoing, please contact Joyce Ong of my staff at (202) 268-6248.

Sincerely,

for Samuel M. Pulcrano
Manager
Contract Administration (APWU/NPMHU)

475 L'ENFANT PLAZA SW
WASHINGTON DC 20260-4100